

Opinion of SOTOMAYOR, J.

those addressed in *Davis*, *Carlson*, and *Bivens* itself. See *ante*, at 486.

In *Ziglar v. Abbasi*, 582 U. S. 120, the Court not only declined to extend *Bivens* but also revised and narrowed its two-step analytic framework. The *Ziglar* Court set forth a new inquiry requiring courts considering a *Bivens* claim first to ask whether a case “is different in a meaningful way from previous *Bivens* cases decided by this Court” and therefore arises in a “new . . . context.” 582 U. S., at 139; see also *Hernández v. Mesa*, 589 U. S. —, — (2020). The *Ziglar* Court offered a laundry list of differences that “might” be meaningful, including “the rank of the officers involved; the constitutional right at issue; the generality or specificity of the official action; the extent of judicial guidance as to how an officer should respond to the problem or emergency to be confronted; the statutory or other legal mandate under which the officer was operating; the risk of disruptive intrusion by the Judiciary into the functioning of other branches; or the presence of potential special factors that previous *Bivens* cases did not consider.” 582 U. S., at 140. The Court recognized, however, that some differences “will be so trivial that they will not suffice to create a new *Bivens* context.” *Id.*, at 149.

If the differences are in fact “meaningful ones,” *ibid.*, “then the context is new,” *id.*, at 139, and a court “proceed[s] to the second step” of the analysis, *Hernández*, 589 U. S., at —. The second step requires courts to consider whether special factors counsel hesitation in recognizing a *Bivens* remedy in a new context. *Ziglar*, 582 U. S., at 136; *Hernández*, 589 U. S., at —.

Importantly, even as the *Ziglar* Court grafted a more demanding new-context inquiry onto the traditional *Bivens* framework, the Court emphasized that its opinion was “not intended to cast doubt on the continued force, or even the necessity, of *Bivens* in the search-and-seizure context in which it arose.” 582 U. S., at 134. Quite the opposite: The Court recognized that *Bivens* “vindicate[s] the Constitution